JAY INSLEE
Governor

STATE OF WASHINGTON
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PROCLAMATION BY THE GOVERNOR
AMENDING PROCLAMATIONS 20-05 and 20-25 et seq.

20-25.7

"SAFE START – STAY HEALTHY"
COUNTY-BY-COUNTY PHASED REOPENING

WHEREAS, on February 29, 2020, I issued Proclamation 20-05, proclaiming a State of Emergency for all counties throughout the state of Washington as a result of the coronavirus disease 2019 (COVID-19) outbreak in the United States and confirmed person-to-person spread of COVID-19 in Washington State; and

WHEREAS, as a result of the continued worldwide spread of COVID-19, its significant progression in Washington State, and the high risk it poses to our most vulnerable populations, I have subsequently issued amendatory Proclamations 20-06 through 20-53 and 20-55 through 20-63, exercising my emergency powers under RCW 43.06.220 by prohibiting certain activities and waiving and suspending specified laws and regulations; and

WHEREAS, I issued Proclamations 20-25, 20-25.1, 20-25.2,and 20-25.3 (*Stay Home – Stay Healthy*), and I subsequently issued Proclamation 20-25.4 on May 31, 2020, ("*Safe Start – Stay Healthy" County-By-County Phased Reopening*), wherein I amended and transitioned the previous proclamations' prohibitions to the "*Safe Start – Stay Healthy*" framework, prohibiting all people in Washington State from leaving their homes except under certain circumstances and limitations based on a phased reopening of counties as established in Proclamation 20-25.4, et seq., and according to the phase each county was subsequently assigned by the Secretary of Health; and

WHEREAS, when I issued Proclamation 20-25.4 on May 31, 2020, I ordered that, beginning on June 1, 2020, counties would be allowed to apply to the Department of Health to move forward to the next phase of reopening more business and other activities; and by July 2, 2020, a total of five counties were approved to move to a modified version of Phase 1, 17 counties were in Phase 2, and 17 counties were in Phase 3; and

WHEREAS, when I issued the *Safe Start– Stay Healthy* order (Proclamation 20-25.4) on May 31, 2020, there were approximately 21,349 cases of COVID-19 in Washington State with 1,118 deaths ; and when I issued the *Safe Start-Stay Healthy* order (Proclamation 20-25.5) on July 1, 2020, there were approximately 32,824 cases and 1,332 deaths; and

WHEREAS, on July 1, 2020, when I issued Proclamation 20-25.5 ("*Safe Start – Stay Healthy*" *County-By-County Phased Reopening*), I amended the previous proclamations, and incorporated the prohibitions involving statewide face coverings in *Order of the Secretary of Health 20-03*; and

prohibited, among other things, employers from failing to cooperate with public health authorities; and updated the Reopening Plan; and

WHEREAS, on July 2, 2020, due to the increased COVID-19 infection rates across the state, I ordered a freeze on all counties moving forward to a subsequent phase, and that freeze remains in place today while I work with the Department of Health and other epidemiological experts to determine appropriate strategies to mitigate the recent increased spread of the virus and increased hospitalizations and deaths, and those strategies may include restricting some business and other activities; and

WHEREAS, when I last issued an extension of the *Safe Start– Stay Healthy* order (Proclamation 20-25.6) on July 7, 2020, the Department of Health reported that there were 37,420 cases, 4,723 hospitalizations and 1,384 deaths; and just over 2 weeks later (16 days), on July 23, 2020, there were 50,009 cases, 5,276 hospitalizations and 1,482 deaths, demonstrating the ongoing present threat and a dangerous upward spread of this lethal disease, and an apparent disregard by many individuals for the health and safety measures recommended by the Washington State Department of Health and the Centers for Disease Control and Prevention to control its spread; and

WHEREAS, on July 7, 2020, I issued Proclamation 20-25.6 ("*Safe Start – Stay Healthy*" *County-By-County Phased Reopening*), wherein I amended the previous proclamations, and, among other things, prohibited all employers in Washington from operating, allowing a customer to enter a business, or conducting business with a customer inside any building that is open to the public or outdoors in a public place unless the customer is wearing a face covering as required by *Order of the Secretary of Health 20-03*; and

WHEREAS, the COVID-19 disease, caused by a virus that spreads easily from person to person which may result in serious illness or death and has been classified by the World Health Organization as a worldwide pandemic, has broadly spread throughout Washington State and remains a significant health risk to all of our people, especially members of our most vulnerable populations; and

WHEREAS, health professionals and epidemiological modeling experts advise that Washington is still in a state of COVID-19 outbreak, and pauses in phase reopening, restrictions on gathering size, and increased mask use may help prevent Washington from experiencing the crisis situation in Florida and Arizona; and

WHEREAS, the United States Centers for Disease Control and Prevention recommends that, in addition to its recommendation to maintain six-feet of physical distance from non-household members and frequent hand washing with soap and water or alcohol-based hand sanitizer, people wear cloth face coverings when they are in public settings where they cannot reliably maintain six feet of distance from others at all times, given the substantial increase in the numbers of cases of COVID-19 infection, these precautions must be mandatory; and

WHEREAS, the science also suggests that by ensuring safe social distancing hygiene practices, and the use of cloth face coverings, many business and recreational activities can be conducted with limited exposure to customers, which is important to revitalizing Washington State's economy, restoring jobs, and providing necessary goods and services; and

WHEREAS, on June 8, 2020, I ordered all employees to wear a face covering when working, except when working alone or when the job involves no in-person interaction, as detailed in the *Safe Start*

Washington Phased Reopening Plan, and, further, that employers must provide cloth facial coverings to employees, unless their exposure dictates a higher level of protection as described in the Department of Labor & Industries' COVID-19 workplace safety and health requirements; and

WHEREAS, on June 24, 2020, the Secretary of Health issued Order 20-03, effective June 26, 2020, requiring all individuals in Washington State to wear a face covering that covers their nose and mouth when in any indoor or outdoor public setting, except under certain circumstances, which provides a minimum level of protection for Washingtonians when they are not at work where the Department of Labor & Industries' face covering requirements apply; and

WHEREAS, due to a surge in COVID-19 infections in Yakima County, on June 24, 2020, I issued Proclamation 20-60, wherein I prohibited all employers in Yakima County from operating, allowing a customer to enter a business, or conducting in-person business with a customer unless the customer wore a face covering in compliance with *Order of the Secretary of Health 20-03*; and

WHEREAS, on July 24, 2020, the Secretary of Health issued Order 20-03.1, effective July 25, 2020, which expands the Secretary's prior face covering mandate to require all people in Washington State to wear a face covering when they are outside of their house, mobile home, apartment, condominium, hotel or motel room, bedroom in a congregate living setting, or other dwelling unit; and

WHEREAS, the worldwide COVID-19 pandemic and its progression in Washington State continue to threaten the life and health of our people as well as the economy of Washington State, and remain a public disaster affecting life, health, property or the public peace; and

WHEREAS, the Washington State Department of Health continues to maintain a Public Health Incident Management Team in coordination with the State Emergency Operations Center and other supporting state agencies to manage the public health aspects of the incident; and

WHEREAS, the Washington State Military Department Emergency Management Division, through the State Emergency Operations Center, continues coordinating resources across state government to support the Department of Health and local health officials in alleviating the impacts to people, property, and infrastructure, and continues coordinating with the Department of Health in assessing the impacts and long-term effects of the incident on Washington State and its people; and

NOW, THEREFORE, I, Jay Inslee, Governor of the state of Washington, as a result of the above-noted situation, and under Chapters 38.08, 38.52 and 43.06 RCW, do hereby proclaim and order that a State of Emergency continues to exist in all counties of Washington State, that Proclamation 20-05 and all amendments thereto remain in effect as otherwise amended, and that, to help preserve and maintain life, health, property or the public peace pursuant to RCW 43.06.220(1)(h), Proclamations 20-25, et seq., are amended to extend all of the prohibitions described herein until this order is amended or rescinded. And except as otherwise provided in this order, the *Safe Start Washington Phased Reopening County-by-County Plan* found here, the *Order of the Secretary of Health 20-03.1*, issued on July 24, 2020, found here, and all other provisions of Proclamations 20-25, et seq., shall remain in full force and effect.

FURTHERMORE, in addition to new prohibitions established in this Order and Reopening Plan, for the convenience of the reader, I repeat the language in Proclamation 20-25.6 below; and

FURTHERMORE, until there is an effective vaccine, effective treatment or herd immunity, it is crucial to continue to maintain some level of community interventions to suppress the spread of COVID-19 throughout all phases of recovery; and, therefore, throughout all phases, individuals should (or must, as noted below) continue to engage in personal protective behaviors including:

- practicing physical distancing, staying at least six feet away from other people;
- wearing face coverings in public settings (required, with some exceptions, pursuant to *Order of the Secretary of Health 20-03.1*);
- staying home if sick;
- avoiding others who are sick;
- washing hands frequently;
- covering coughs and sneezes;
- avoiding touching eyes, nose and mouth with unwashed hands; and
- disinfecting surfaces and objects regularly; and

FURTHERMORE, I hereby incorporate by reference the previously-issued order requiring face coverings in the work place and further order, in addition to other requirements detailed in the *Safe Start Washington Phased Reopening Plan*, that:

While at work:

- No employee may work unless that employee wears a face covering when working, except when working alone or when the job involves no in-person interaction, as detailed in the *Safe Start Washington Phased Reopening Plan*; and, further, that employers must provide cloth facial coverings to employees, unless their exposure dictates a higher level of protection as described in the Department of Labor & Industries' COVID-19 Workplace Safety and Health Requirements. These prohibitions involving the use of face coverings supersede the prohibitions involving the use of face coverings in *Order of the Secretary of Health 20-03.1* to the extent that they would apply to employees when working.

When not at work:

- As required by *Order of the Secretary of Health 20-03.1*, or as I otherwise direct, no individual may appear in any indoor or outdoor public or non-public setting outside of their house, mobile home, apartment, condominium, hotel or motel room, or other dwelling unit without wearing a face covering, unless the individual or activity is specifically exempted. Among other exemptions, an individual does not have to wear a face covering while in an outdoor area if they maintain a distance of at least six feet from non-household members.

Employers:

- No employer may operate, allow a customer to enter a business, conduct business, or employ employees unless the employer (a) cooperates with public health authorities in the investigation of cases, suspected cases, outbreaks, and suspected outbreaks of COVID-19; (b) cooperates with the implementation of infection control measures, including but not limited to isolation and quarantine and following the cleaning guidelines set by the CDC to deep clean and sanitize; (c) complies with all public health authority orders and directives; and (d) complies with all Department of Labor & Industries interpretive guidance, regulations, and rules and Department of Labor & Industries-administered statutes. Cooperation and compliance requirements are listed in the Reopening Plan.

- No business may operate, allow a customer to enter a business, or conduct business with a customer inside any building that is open to the public or outdoors in a public place unless the customer is wearing a face covering, as required by *Order of the Secretary of Health 20-03.1*.
- No employer may operate, unless it notifies the employer's local health jurisdiction within 24 hours if the employer suspects COVID-19 is spreading in the employer's workplace, or if the employer is aware of 2 or more employees who develop confirmed or suspected COVID-19 within a 14-day period; and

FURTHERMORE, I continue to permit the low-risk activities previously permitted as reflected or clarified in formal guidance documents here, and which may be updated or modified as the science and data support; and

FURTHERMORE, in collaboration with the Washington State Department of Health, in furtherance of the physical, mental, and economic well-being of all Washingtonians, I will continue to analyze the data and epidemiological modeling and adjust the *Safe Start Washington Phased Reopening Plan* accordingly. Such adjustments may include, if necessary based on the data and science, delaying progress of any or all counties to a subsequent phase, or returning any or all counties to a prior phase.

ADDITIONALLY, in furtherance of these prohibitions and for general awareness:

1. *Order of the Secretary of Health 20-03.1*, issued on July 24, 2020, is incorporated by reference, may be amended as is necessary, and all such amendments are also incorporated by reference.
2. Employers must comply with all conditions for operation required by the state Department of Labor & Industries, including interpretive guidance, regulations and rules, such as WAC 296-800-14035, and Department of Labor & Industries-administered statutes.
3. Everyone is required to cooperate with public health authorities in the investigation of cases, suspected cases, outbreaks, and suspected outbreaks of COVID-19 and with the implementation of infection control measures pursuant to State Board of Health rule in WAC 246-101-425.
4. All mandatory guidelines for businesses and activities, which remain in effect except as modified by this Proclamation and the *Order of the Secretary of Health 20-03.1*, may be found at the Governor's Office website, *COVID-19 Resources and Information*, and at *COVID-19 Reopening Guidance for Businesses and Workers*.

I again direct that the plans and procedures of the *Washington State Comprehensive Emergency Management Plan* be implemented throughout state government. State agencies and departments are directed to continue utilizing state resources and doing everything reasonably possible to support implementation of the *Washington State Comprehensive Emergency Management Plan* and to assist affected political subdivisions in an effort to respond to and recover from the COVID-19 pandemic.

I continue to order into active state service the organized militia of Washington State to include the National Guard and the State Guard, or such part thereof as may be necessary in the opinion of The Adjutant General to address the circumstances described above, to perform such duties as directed by competent authority of the Washington State Military Department in addressing the outbreak. Additionally, I continue to direct the Department of Health, the Washington State Military

Department Emergency Management Division, and other agencies to identify and provide appropriate personnel for conducting necessary and ongoing incident related assessments.

All persons are reminded again that no credentialing program or requirement applies to any activities or operations under this Proclamation.

Violators of this order may be subject to criminal penalties pursuant to RCW 43.06.220(5). Further, if people fail to comply with the required social distancing and other protective measures while engaging in this phased reopening, I may be forced to reinstate the prohibitions established in earlier proclamations.

This order goes into effect immediately, and remains in effect until the state of emergency, issued on February 29, 2020, pursuant to Proclamation 20-05, is rescinded or until this order is amended or rescinded.

Signed and sealed with the official seal of the state of Washington on this 24th day of July, A.D., Two Thousand and Twenty at Olympia, Washington.

By:

/s/
Jay Inslee, Governor

BY THE GOVERNOR:

/s/
Secretary of State